

mon-law courts (*d*), and spiritual courts (*e*), neither of which until the fusion of law and equity had any cognizance [*17] in matters of trust. A common-law * court could never, from the defective nature of its proceedings, have specifically enforced a trust; but at one time it affected to punish a trustee in damages for breach of the implied contract (*a*): an exercise of authority, however, clearly extra-provincial, and afterwards abandoned (*b*). Had a Spiritual court attempted to meddle with a trust, the Court of Queen's Bench might have been moved to issue a prohibition (*c*).

36 & 37 V. c. 66. — By 36 & 37 Vict., c. 66, and 37 & 38 Vict., c. 83, it was enacted that as from 1st November, 1875 (inclusive), there should be "One Supreme Court of Judicature" consisting of "Her Majesty's High Court of Justice" and "Her Majesty's Court of Appeal," and the High Court of Justice was made to comprise five divisions, viz.: the Chancery Division, the Queen's Bench Division, the Common Pleas Division, the Exchequer Division, and the Probate, Divorce, and Admiralty Division [but by Order in Council dated 16th December, 1880, under section 32 of the first-

(*d*) *Sturt v. Mellish*, 2 Atk. 612, *per* Lord Hardwicke; *Allen v. Imlett*, F. L. Holt's Rep. 641; *Holland's case*, Styl. 41, *per* Rolle, J.; *Queen v. Trustees of Orton Vicarage*, 14 Q. B. 139; *Vanderstegen v. Witham*, 6 M. & W. 457; *Bond v. Nurse*, 10 Q. B. 244; *Edwards v. Lowndes*, 1 Ell. & Bl. 81; *Drake v. Pywall*, 4 Hurlst. & Colt. 78. In *The Queen v. Abrahams*, 4 Q. B. 157, the Court professed to proceed upon the *legal* right so that the principle was not disturbed, though there may be a question how far the facts justified the assumption upon which the Court acted. In *Roper v. Holland*, 3 Ad. & Ell. 99, a *cestui que trust* recovered upon an action of debt for money had and received on proof of the admission by the trustee that he had a balance in hand for the plaintiff; and see *Sloper v. Cottrell*, 2 Jur. N. S. 1046; *Topham v. Morecraft*, 4 Jur. N. S. 611.

(*e*) *Miller's case*, 1 Freem. 283; *King v. Jenkins*, 3 Dowl. & Ryl. 41; *Farrington v. Knightly*, 1 P. W. 549, *per* Lord Parker; *Edwards v. Graves*, Hob. 265; *Witter v. Witter*, 3 P. W. 102, *per* Lord King.

(*a*) *Megod's case*, Godb. 64; *Jevon v. Bush*, 1 Vern. 344, *per* Lord Jeffries; *Smith v. Jameson*, 5 T. R. 603, *per* Buller, J.; and see 1 Eq. Ca. Ab. 384, D. (*a*).

(*b*) *Barnadiston v. Soame*, 7 State Trials, 443, Harg. ed. *per* Chief Justice North; *Sturt v. Mellish*, 2 Atk. 612, *per* Lord Hardwicke; *Holland's case*, Styl. 41, *per* Rolle, J.; *Allen v. Imlett*, F. L. Holt's Rep. 14.

(*c*) *Petit v. Smith*, 1 P. W. 7; *Edwards v. Freeman*, 2 P. W. 441, *per* Sir J. Jekyll; *Barker v. May*, 4 M. & R. 386; *Ex parte Jenkins*, 1 B. & C. 655.